

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULIN

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

TERRANCE NELSON; TINA FOSTER;
TOMIKO LEE-NOLASCO,

Plaintiffs,

v.

JASHANPREET SINGH; HARJIT SINGH;
NATHAYN TRANS LLC; MATHAUN
TRANSPORTATION LLC MTL XPRESS INC.;
THE STATE OF CALIFORNIA DEPARTMENT
OF MOTOR VEHICLES; and DOES 1 through
100, INCLUSIVE,

Defendants. And

GEORGIA M. NELSON, Nominal Defendant.

Case No.: CIVSB2602658

**[TENTATIVE] ORDER
OVERRULING DEMURRER
FILED BY THE STATE OF
CALIFORNIA TO PLAINTIFF'S
COMPLAINT**

I. INTRODUCTION

Currently before this Court is a demurrer to the Complaint filed by the Defendant State of California acting by and through the California Department of Motor Vehicles.

This action was commenced on January 20, 2026, by Terrance Nelson, Tina Foster, and Tomiko Lee-Nolasco ("Plaintiffs") asserting causes of action for (1) wrongful death; and (2) failure to discharge mandatory duty. This is a wrongful death matter arising out of the deaths of Clarence and Lisa Nelson ("Decedents") in a motor vehicle collision on October 21, 2025.

Defendant Jashanpreet Singh was driving a semi-truck (the “Subject Truck”) for Defendants Harjit Singh; Mathaun Trans LLC; Mathaun Transport LLC; and MTL Xpress Inc. Defendant Jashanpreet Singh collided with stopped traffic on the I-10 freeway in San Bernardino County. He struck the car being driven by Clarence and Lisa Nelson, causing their deaths. (Comp., ¶ 1.)

After various proofs of service were filed, the State of California acting by and through the California Department of Motor Vehicles, filed this present demurrer together with a declaration by Haiyang Allen Li, Esq. On May 7, 2026, Plaintiffs filed an opposition to the demurrer together with a declaration by Andrew L. Schrader, Esq. and a request for judicial notice. On May 13, 2026, Defendant State of California filed a reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.¹

II. WHY THE DEMURRER SHOULD BE OVERRULED

Section 815.6 has three discrete requirements which “must be met before governmental entity liability may be imposed under Government Code section 815.6: (1) an enactment must impose a mandatory duty; (2) the enactment must be meant to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability; and (3) breach of the mandatory duty must be a proximate cause of the injury suffered.” *See San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 428-29 (quoting *Ellerbee v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1215). The demurrer challenges requirements (1), existence of a mandatory duty, and (3) proximate cause. These issues are addressed in turn below.

¹ The Court finds that the moving party has complied with its meet-and-confer obligation. Also, the Court grants Plaintiff’s requests for judicial notice. Cal. Evid. Code §§ 452(b), (c).

A. Mandatory Duty

Under both 49 USC § 31311(a)(12) and 13 CCR § 2601, the State Defendants are only permitted to issue CDLs to non-domiciled individuals if they do so in compliance with federal regulations. 49 U.S.C. § 31311(a)(12)(A)-(B). The applicable regulation is the Interim Federal Rule which states: “Beginning September 29, 2025, the State must not issue ...unless, at the time of the transaction, the applicant provides evidence of lawful immigration status...” (Interim Final Rule, § 383.73(f)(3)(ii)(A), 90 Fed. Reg. 46524 emphasis added). That is the language of direct, mandatory command. The California regulation mirrors the federal scheme. Under the regulation, “[t]he department may not issue a commercial driver’s license or commercial learner’s permit to any person unless the person presents to the department proof of his or her legal presence in the U.S.” (13 C.C.R. § 2601.) The State language is equally mandatory. Accordingly, the Court finds that the State Defendants were under a mandatory duty per Gov. Code § 815.6 to refrain from issuing commercial driver’s licenses to persons without legal status in the United States.

Defendants’ citation to *Brenneman v. State of California* (1989) 208 Cal.App.3d 812, 817, falls flat. It does not compel a different result but instead by contrast underscores the mandatory nature of the provisions at issue in this case. Additionally, the State Defendants appear to have no discretion pursuant to Gov. Code, § 820.2. (See *Morris v. County of Marin* (1977) 18 Cal.3d 901.) The immunity granted under section 818.4 was “intended to confer immunity only in connection with discretionary activities, and not in connection with mandatory duties that cannot be ignored.” (*Corona v. State of California* (2009) 178 Cal.App.4th 723, 733.)

B. Proximate Cause

This argument presents disputed issues of fact which are not determinable on demurrer. There are no facts showing that Defendant Singh's original license would have been still valid on the date of the incident, that the incident occurred during an intrastate trip, or that Mr. Singh would have been hired by his carrier without interstate driving privileges. These factual issues need to be resolved during discovery. The only facts that are actually supported by the Complaint are that: (1) Defendant Singh was driving under an unlawfully-issued driver's license at the time of the collision; (2) he caused the deaths of Plaintiffs' parents while driving under that license he never should have had in the first place; and (3) that the wrongful issuance of the license was one of the causes of the collision.

The Interim Final Rule was succeeded by the Final Rule: Restoring Integrity to the Issuance of Non-Domiciled Commercial Drivers Licenses (CDL), 91 Fed. Reg. 7044 (Feb 13, 2026) (to be codified at 49 C.F.R. Parts 383 and 384). The Final Rule specifically explains how the State Defendants' noncompliance with the regulation caused the collision:

On October 21, 2025, a driver who held a California non-domiciled CDL issued in June 2025 was involved in a fatal crash on I-10 in Ontario, California. Media reports state that the driver failed to stop, rear-ending several vehicles and colliding with others. In total, the incident involved eight vehicles, including four tractor-trailers. There were three fatalities and multiple other injuries. This driver was initially issued a Class A CDL with a "K" restriction, which means the driver was only allowed to drive intrastate, in June 2025. However, six days before the crash, the SDLA removed the "K" restriction when the driver turned 21, which upgraded his driving privileges. Had the SDLA complied with the IFR (which was still in effect at the time of the upgrade and crash) or the enforcement action which required California to pause issuance of non-domiciled CDLs, it would have prevented the upgrade of his driving privileges. The driver would have been required to return to the DMV (on or after turning 21) to have the "K" restriction removed and upgrade his CDL. Upon returning for the upgrade, he would have been found ineligible to retain the non-domiciled CDL because he was not in one of the specified employment-based nonimmigrant categories, and consequently would not have been permitted to operate the CMV involved in this crash.

(See RJN, Ex. 3 at 7066.) The Final Rule explicitly notes that this incident represents the precise risk the Interim Final Rule was designed to prevent.

III. CONCLUSION

1. The demurrer filed by the State Defendants is respectfully OVERRULED.
2. The State Defendants are ORDERED to answer the Complaint no later than June 1, 2026.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court